

Court No. - 39

Case :- WRIT - C No. - 23633 of 2020

Petitioner :- Mohd. Zaheer Uddin Babar And 21 Others

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mohd. Ayub

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard the learned counsel for the petitioners, Sri Ashutosh Srivastava, learned counsel for the respondent no. 3, Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 4 and the learned Standing counsel on behalf of the respondent no. 1.

This writ petition has been filed with the following relief;

"(i) issue a writ, order or direction in the nature of mandamus commanding the respondents especially the respondent no.3 to permit the petitioners to deposit the outstanding electricity dues of the lock down period, in easy instalment in 12th equal amount and accept the same.

(ii) issue a writ, order or direction in the nature of mandamus restraining the respondents from realization of interest, whatever accrued over the total outstanding amount of the lock down period and to exempt the same in view of the financial loss suffered by the petitioners due to lock down and to amend the bills accordingly.

(iii) issue a writ, order or direction in the nature of mandamus directing the respondents not to recover any amount from the petitioners as arrears of bill amount/revenue.

(iv) issue any other suitable writ, order or direction as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

(v) Award cost of petition to the petitioners."

The petitioners who are 22 in numbers before this court aggrieved by the action of the respondent no. 3 for issuing excessive bill. However, they are ready to deposit the same in case indulgence is granted to pay the same in easy instalment as may be fixed by this court. At this the learned counsel appearing on behalf of the respondent nos. 3 and 4 submits that there is an alternative remedy available to the petitioners to approach the respondent no. 3 by filing a representation under Clause 6.14 of U.P. Electricity Supply Code

2005 and the same shall be considered strictly in accordance with law by the answering respondent.

It is submitted by the learned counsel for the respondents that there is no whisper in the writ petition of any due amount shown against the petitioners.

Considering the submissions advanced by the learned counsel for the parties, we are of the opinion that in case the petitioners move a representation before the respondent no. 3 the same shall be considered strictly in accordance the provision of Clause 6.14 of the U.P. Electricity Supply Code 2005.

Accordingly, the petition is disposed of.

Order Date :- 12.1.2021

Shahnawaz